

Amendment No. 2 to HB1066

Vaughan
Signature of Sponsor

AMEND Senate Bill No. 1388

House Bill No. 1066*

by adding the following as a new section in the amendatory language of SECTION 1:

71-4-512.

(a) Notwithstanding this part to the contrary, priority must not be given to the department, an eligible individual with a disability, or a blind vendor unless the proposal of the department, individual, or vendor to operate a vending facility or vending machine, when considered with all other proposals after a bidding process, is found to be competitive in terms of quality of service, pricing of merchandise, and the rate of commission or the rent to be paid.

(b) A proposal described in subsection (a) is not competitive if the proposed payment of annual commissions, rental fees, or a combination of annual commission and rental fees, is not within two percent (2%) of that submitted by an organization that would otherwise be able to operate a vending facility or vending machine on the public property.

(c) If there is disagreement as to whether a proposal of the department, an individual, or a vendor is competitive, the dispute must be resolved pursuant to § 71-4-507.